



File No.: EXP202308609

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. on May 7, 2023, filed a complaint, with entry registration number REGAGE23e(...), before the Spanish Agency for Data Protection against the GENERAL SECRETARIAT FOR INNOVATION AND QUALITY OF PUBLIC JUSTICE SERVICE with NIF S2813610I (hereinafter, GENERAL SECRETARIAT). The reasons for the complaint are as follows:

A.A.A. states that he is ***POSITION.1 of the Court of First Instance and Instruction (...) and that, on ***DATE.1, a ***POSITION.2 took office at that court; a labor dispute arose between both parties, which led to the filing of a complaint against him.

He claims that during the processing of the information diligence initiated to resolve the dispute, he became aware that the person who filed the complaint possessed a series of recordings of him made clandestinely in the court, consisting of three emails from ***POSITION.2 with three recordings and a report. In these recordings, several conversations held by A.A.A. with third parties in his office are visualized (...).

Therefore, A.A.A. understands that ***POSITION.2, in collusion with office officials, carried out a hidden audiovisual surveillance activity of his professional activity. From this action, he concludes that several provisions of the data protection regulations have been infringed.

Along with the complaint, he submits the following documentation:

- Copy of three documents registered by ***POSITION.2 (***EMAIL.1) to which the controversial recordings were attached. As stated in them, in the section "Message Content," the following text appears: "(...)".
- Copy of the "Agreement of the Promoter of the Disciplinary Action" issued on ***DATE.2, in which he requests ***POSITION.2 to provide the evidence specifying the following: the origin of the recordings, the author of the same, dates on which they took place, and identity of the interlocutors.

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on June 21, 2023, the aforementioned complaint was forwarded to the GENERAL SECRETARIAT for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on July 2, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail for informational purposes, which was duly notified on July 24, 2023. In this notification, he was reminded of his obligation to communicate electronically with the Administration, and he was informed of the means of access to such notifications, reiterating that, henceforth, he would be notified exclusively by electronic means.

No response has been received to this transfer letter.

THIRD: On August 7, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was

admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1) On May 17, 2024, a request for information was made to the GENERAL SECRETARIAT in which the following was requested:

- 1.- Provision of the technical reports or recommendations prepared by the Data Protection Officer or by the security officer, regardless of their format, regarding the treatments for which information is requested, as well as on the subsequent actions taken or their absence, derived from the aforementioned technical reports or recommendations. Furthermore, the nominal identification of the authority or executive responsible for the treatment at the time of the issuance of the aforementioned technical reports or recommendations is requested.
- 2.- The decision adopted regarding this complaint.
- 3.- Report on the causes that led to the incident that originated the complaint.
- 4.- Report on the measures taken to prevent similar incidents from occurring, dates of implementation, and controls carried out to verify their effectiveness.

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5.- In particular, the recordings presented by ***CARGO. from the Court of First Instance and Instruction (...), in which A.A.A. appears, must be provided, specifying: the origin of the recordings, the author of the same, the dates on which they took place, and the identity of the interlocutors.

6.- Any other information that is deemed relevant.

2) On June 24, 2024, a report from the Data Protection Delegate of the SECRETARÍA GENERAL is received in response to the aforementioned request, which includes, among other statements, the following:

“That the Informative Proceedings XXX/YYYY have been processed and, subsequently, the disciplinary procedure XX/XX has been initiated against the claiming party (...). The described facts are a case of labor conflict, having initiated the corresponding administrative procedures before the legal superiors of the affected parties (CGPJ and Ministry of Justice).

That the processing carried out was not included within the activities for the exercise of jurisdictional function, but rather the facts were carried out privately, and not through the use of material means corresponding to the administering authority that had assumed competencies in the field of justice, such as, for example, the use of video surveillance cameras in judicial facilities.”

The SECRETARÍA GENERAL provides the following relevant documentation:

- Government files initiated.
- Reports issued in relation to the complaint filed by ***CARGO.1.
- Report issued by the person against whom the complaint is made [***CARGO.2].
- Recommendations and reports issued in relation to the treatments (Protocol for managing security incidents and breaches of personal data security, Security standard for the use of resources and information systems of the Ministry of Justice, Collaboration Agreement between the General Council of the Judiciary and the Spanish Agency for Data Protection regarding collaboration in the exercise of the functions of the control authorities in the field of data protection).

3) On June 26, 2024, a second request is made to the SECRETARÍA GENERAL in which the following information is requested:

- 1.- Provision of the documentation contained in the informative proceedings XXX/YY, in any of the formats in which it is found (paper, graphic, and audio). In particular, the recordings presented by ***CARGO.2 from the Court of First Instance and Instruction (...), in which A.A.A. appears, must be provided, specifying: the origin of the recordings, the author of the same, the dates on which they took

place, and the identity of the interlocutors.

2.- Provision of the documentation contained in the sanctioning file XX/XX against A.A.A.

3.- The report on the events that occurred issued by the Illustrious Ms. Secretary Coordinator of ***LOCALIDAD.1.

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4.- Copy of the reports issued in relation to the complaint filed by ***CARGO.1.

5.- As well as the report issued by the person against whom the complaint is made [***CARGO.2].

6.- Any other information that is deemed relevant.

4) On June 27, 2024, a letter is received from the Data Protection Delegate of the SECRETARÍA GENERAL, in which it is indicated, among other aspects, the following:

That there is no record and has never been any record of the recordings referred to in the request.

These recordings were provided by ***CARGO.2 from the Court of First Instance and Instruction (...) in response to the request from the Discipline Section of the CGPJ in the context of the Informative Proceedings XXX/YY and, subsequently, in the disciplinary procedure XX/XX, opened against A.A.A., as a means of evidence within the corresponding administrative procedure.

Along with these statements, the following documents are provided:

- Government file initiated by the Provincial Coordinator Secretary of ***LOCALIDAD.1 at the request of the Government Secretariat of the Superior Court of Justice of ***COMUNIDAD.1 regarding the complaint filed by A.A.A. against ***CARGO.2 from the Court of First Instance and Instruction (...), in which it is noted:

o Agreement for the transfer of the Government Secretariat of the Superior Court of Justice of ***COMUNIDAD.1 of Complaint File No. (...) to the Provincial Coordinator Secretary of ***LOCALIDAD.1.

o Complaint letter filed by A.A.A.

o Letter from the Judicial Office of the Court of First Instance and Instruction (...) in which a labor conflict relationship with A.A.A. is reported, signed by ***CARGO.2 and several workers from the Court.

o Emails sent to the CGPJ regarding the informative proceedings XXX/YYYY, in which the recordings referred to by A.A.A. in their complaint are attached.

o Agreement from the Promoter of Disciplinary Action of the CGPJ, in which it is requested that ***CARGO.2 of the aforementioned Court provide clarifications on: the origin of the recordings, the author of the same, the dates on which they took place, and the identity of the interlocutors.

o Agreement to initiate Government File (...), from the Provincial Coordinator Secretary of ***LOCALIDAD.1.

o Report from ***CARGO.2 regarding the aforementioned complaint, which includes, among others, the following points:

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☐ (...).

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Personal reports from six workers of the Judicial Office regarding the conduct of A.A.A.

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Agreement to archive by the Provincial Coordinating Secretary of ***LOCALITY.1, of Government File (...) for not finding criminal conduct in the actions of ***POSITION.2, issued. It includes, among others, the following grounds:

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Agreement from the Secretary of Government of the Superior Court of Justice of ***COMMUNITY.1 ordering the archiving of the Complaint File (...).

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Reinstatement appeal filed by the claimant against the Agreement to archive by the Provincial Coordinating Secretary of ***LOCALITY.1.

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Allegations to said appeal presented by ***POSITION.2 in which it states, among others, the following aspects:

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Agreement from the Provincial Coordinating Secretary of ***LOCALITY.1 dismissing the reinstatement appeal.

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Report dated June 17, 2024, from ***POSITION.2 regarding the facts disclosed by A.A.A. in their complaint to the AEPD. It includes, among others, the following points:

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LEGAL GROUNDS

I

Competence

In accordance with the functions conferred by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) to each supervisory authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

III

Object of the complaint

In this case, A.A.A. filed a complaint with this Agency regarding the existence of 3 recordings about them which, in their opinion, demonstrate the performance by ***POSITION.2 and (...) of the Court of First Instance and Instruction (...) of a hidden audiovisual surveillance activity of their professional activity; having become aware of their existence during the processing of Informative Proceedings XXX/YY initiated as a result of the complaint filed by these against them.

The documentation in the administrative file confirms that the 3 referred recordings were made by ***POSITION.2 and 2 other officials of the court, using their own mobile phones, and the content consisted of discussions of A.A.A. with court personnel. On their part, the existence of a hidden audiovisual surveillance system of A.A.A.'s professional activity has not been substantiated, as indicated in their complaint. Similarly, the

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The GENERAL SECRETARIAT in its writing of June 24, 2024, also denies that the recordings were made from the video surveillance system of the Court itself. Furthermore, from the actions carried out by this Agency, it was learned that A.A.A. filed a complaint against ***CARGO.2 before the General Council of the Judiciary for, among other issues, the recordings made and submitted by the latter in the Informative Proceedings XXX/YY; and that it was archived as it was considered that there was no disciplinary irregularity, as stated in the Government File initiated by the Provincial Coordinating Secretary of ***LOCALIDAD.1. Among the statements collected in the Agreement of archiving, the following is indicated: "(...)."

For an action to be subject to sanction in the field of data protection, it is necessary that there is a breach of the obligations or principles established by the GDPR. In this sense, the mere existence of a recording does not in itself imply an infringement, and its purpose, the framework in which it was made, and whether the principles and obligations established in the data protection regulations have been respected must be analyzed.

In the present case, from the documentation in the file, it is evident that the recordings were made by ***CARGO.2 and two other officials of the Court using their personal devices and that their content was limited to discussions between A.A.A. and the Court staff. These recordings were not disseminated indiscriminately, but were submitted within the framework of the Informative Proceedings initiated by the Disciplinary Section of the General Council of the Judiciary, fulfilling a purpose of evidence in the disciplinary procedure.

On the other hand, there is no evidence of the existence of a hidden audiovisual surveillance system over the professional activity of the complainant, and the General Council of the Judiciary proceeded to archive the complaint filed against ***CARGO.2, considering that their action did not constitute an improper use of information nor did it violate any rights.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, as the existence of a hidden audiovisual surveillance activity over the professional activity of A.A.A. has not been substantiated.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the aforementioned, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to the GENERAL SECRETARIAT FOR INNOVATION AND QUALITY OF PUBLIC JUSTICE SERVICE and to the complainant.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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